

Sathivada Sireesha Jamuna, vs Pothala Srinivasa Rao, on 11 February, 2025

HIGH COURT OF ANDHRA PRADESH AT AMARAVATI
MAIN CASE No.Tr.C.M.P.39 of 2025
PROCEEDING SHEET

Sl. No.	DATE	ORDER	OFFICE NOTE
01.	11.02.2025	VGKR, J	

I.A.No.1 of 2025

Heard Smt. K.S.G.Padmavathi,
learned counsel for the petitioner.

Learned counsel for the petitioner
contends that the petitioner is none other
than the wife of the respondent/husband,

due to the matrimonial disputes between both the parties, the petitioner/wife is residing separately at her parents' house at Patrunivalasa Village, Srikakulam District.

Learned counsel for the petitioner would further contend that the petitioner filed a complaint and the same has been registered as Cr.No.112 of 2024, under Section 85 of BNS and under Sections 3 & 4 of the Dowry Prohibition act against the respondent/husband and the same was numbered as C.C.No.1084 of 2014, on the file of the Judicial First Class Magistrate, Srikakulam, Srikakulam District, the same is pending for adjudication. The petitioner further pleaded that she had filed a Maintenance Case vide M.C.No.35 of 2024 on the file of the Judicial Magistrate of First Class, Srikakulam, Srikakulam District, seeking maintenance from the respondent and the respondent/husband is attending the Court proceedings in the aforesaid case.

Learned counsel for the petitioner would further contend that to cause unnecessary inconvenience to the petitioner/ wife the respondent/husband had filed F.C.O.P.No.1540 of 2024, on the file of the Family Court, Visakhapatnam, under Section 12 of the Hindu Marriage Act, 1955, seeking nullifying the marriage. He would further contend that the distance between Srikakulam and Visakhapatnam is approximately 100kms and therefore, it is very difficult for the petitioner to appear before the Family Court, Visakhapatnam on each and every adjournment without any male support and that the petitioner/wife is constrained to file the present transfer petition.

Perused the record.

Considering the submissions made by the learned counsel for the petitioner and for the reasons mentioned in the accompanying affidavit, there shall be an interim stay on all further proceedings including the appearance of the petitioner herein i.e. the respondent in F.C.O.P.No.1540 of 2024, on the file of the Family Court, Visakhapatnam, till 28.03.2025.

Learned counsel for the petitioner is permitted to take out personal notice to the respondent through Registered Post with Acknowledgment Due and file proof of service before the Registry.

_____ VGKR, J Admit.

Notice.

Post the matter on 28.03.2025.

_____ VGKR, J SRT